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February 11, 2025

AS AMENDED

SENATE BILL NO. 779

By: McIntosh

[county officials - system - prioritization -
requirements - meeting - liability protection -
codification - effective date]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 509 of Title 19, unless there is created a duplication in numbering, reads as follows:

A. This act shall be known and may be cited as the "Volunteer County Emergency Response Corps Act".

B. 1. The county sheriff, county commissioners, and emergency management personnel of each county of this state shall work in conjunction to establish a system to engage county residents to volunteer their time, expertise, or resources during an emergency.

2. Prioritization for selection in the Volunteer County
Emergency Response Corps shall be based on, but not limited to, the
following:

a. construction services to clear debris,

b. landscaping services to clear downed trees,

- c. entities to serve as temporary staging areas,
including churches, event centers, and businesses,
- d. chaplain services,
- e. first response services, including by medical
personnel and honorably discharged veterans,
- f. transportation services to move people and supplies,
and
- g. other specializations or resources provided by
individuals as deemed appropriate for an emergency
response.

C. At least two county employees designated by the county sheriff, county commissioners, and emergency management personnel shall create, maintain, operate, and update a system that allows county residents to volunteer as members of the Volunteer County Emergency Response Corps, list applicable specialties or available supplies, and share preferred contact information.

D. At least once per year, the county sheriff and county commissioners shall hold a public meeting to discuss and promote the Volunteer County Emergency Response Corps. Such meeting may take place in conjunction with any other regularly scheduled public meeting.

E. Any volunteer or entity that offers services or supplies pursuant to the Volunteer County Emergency Response Corps shall be immune from liability in a civil action on the basis of any act or

1 omission of the volunteer or entity resulting in damage or injury if
2 the damage or injury was not caused by gross negligence or willful
3 and wanton misconduct by the volunteer or entity.

4 F. The county shall not be liable for any injury to a volunteer
5 or entity that offers services or supplies pursuant to the Volunteer
6 County Emergency Response Corps other than for acts of gross
7 negligence or deliberate actions.

8 SECTION 2. This act shall become effective November 1, 2025.

9 COMMITTEE REPORT BY: COMMITTEE ON LOCAL AND COUNTY GOVERNMENT
10 February 11, 2025 - DO PASS AS AMENDED
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